

HOUSE BILL 1499

By Reedy

AN ACT to amend Tennessee Code Annotated, Title 3,
Chapter 18, relative to Article V conventions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 18, is amended by deleting the chapter and substituting:

3-18-101. Application of chapter.

This chapter applies to a convention for proposing amendments held under Article V of the United States Constitution.

3-18-102. Chapter definitions.

As used in this chapter, unless the context otherwise requires:

(1) "Advisory committee" means the Article V convention advisory committee created pursuant to § 3-18-112;

(2) "Alternate commissioner" means a person elected as an alternate commissioner of a paired commissioner pursuant to § 3-18-105;

(3) "Article V convention" or "convention" means a convention for proposing amendments to the United States Constitution called for by the states under Article V of the United States Constitution;

(4) "Commissioner" means a person selected by resolution of the general assembly as a commissioner or alternate commissioner pursuant to § 3-18-105;

(5) "Commissioning resolution" means the resolution adopted by the senate and house of representatives of the general assembly that sets forth the names of the appointed commissioners and their commissions and instructions;

(6) "Delegation" means the group of commissioners and alternate commissioners chosen by the general assembly to attend an Article V convention with the powers and duties defined in this chapter;

(7) "House of representatives" means the house of representatives of the general assembly;

(8) "Paired commissioner" means the commissioner with whom an alternate commissioner is paired as provided by this chapter; and

(9) "Senate" means the senate of the general assembly.

3-18-103. Qualifications of commissioners.

At the time of appointment and throughout the Article V convention, a commissioner:

(1) Must be a United States citizen for at least five (5) years;

(2) Must be a resident of this state for at least five (5) years;

(3) Must be at least twenty-five (25) years of age;

(4) Must be a registered voter in this state;

(5) Must not be registered or required to be registered at any time within the last five (5) years as a lobbyist under chapter 6, part 3 of this title or under 2 U.S.C. § 1603, or rules or regulations adopted under such laws;

(6) Must not currently be a federal employee, other than a member of the United States armed forces, or contractor, nor have been such an employee or contractor at any time within the last ten (10) years;

(7) Must not have held a federal elected or appointed office at any time within the last ten (10) years;

(8) Must not have had any felony convictions for crimes involving moral turpitude in any jurisdiction of the United States, nor any felony convictions for any crime in such a jurisdiction within the last ten (10) years; and

(9) Must not hold a statewide office while performing the duties of commissioner or alternate commissioner. As used in this subdivision (9), "statewide office" does not include a person elected to serve in the general assembly.

3-18-104. Participation in Article V conventions.

Costs related to an Article V convention, except for the costs of any special session to consider whether to participate in an Article V convention, must not be incurred until the general assembly passes a resolution agreeing to participate in an Article V convention. The joint resolution agreeing to participate in the Article V convention and any additional joint resolutions related to that participation must request a specific appropriation for all expenditures related to each such joint resolution.

3-18-105. Joint commissioning resolution - Commissioner selection and removal.

(a) Commissioners and alternate commissioners must be named by a joint resolution passed by a two-thirds (2/3) vote of those present and voting in a joint session of the general assembly. The general assembly shall appoint commissioners and alternate commissioners so that, as near as practicable, the three (3) grand divisions of the state are equally represented.

(b) At the time of election, each commissioner must be paired with an alternate commissioner as provided in the joint resolution adopted by the general assembly.

(c) If the general assembly is not in session during the time at which commissioners to an Article V convention must be appointed, the governor shall call the

general assembly into special session under Article III, § 9 of the Constitution of Tennessee for the purpose of appointing commissioners and alternate commissioners.

(d) The general assembly shall maintain an odd number of commissioners in the delegation.

(e) A commissioner or alternate commissioner may be suspended, recalled, or removed at any time and for any reason by a joint resolution of the general assembly or by a majority of those present and voting in a joint session thereof.

(f) A commissioner or alternate commissioner may also be suspended, recalled, or removed by the advisory committee pursuant to a determination under § 3-18-113.

3-18-106. Joint commissioning resolution - Commission and scope of authority.

(a) The joint resolution adopted pursuant to § 3-18-105 naming the commissioners and alternate commissioners must include their commission. The commission must include, but is not limited to, the following:

(1) A commissioner shall not vote for or otherwise promote any change to the traditional convention rule of decision on the floor and in the committee of the whole, to-wit, that each state has one (1) vote;

(2) A commissioner shall not vote for or otherwise promote a convention rule that does not require recorded roll call votes or the electronic equivalent;

(3) A proposed amendment is not germane unless its subject matter is consistent with the resolutions of the legislatures of the several states that were the basis of calling the convention; and

(4) A commissioner shall not vote in favor of a proposed amendment that would alter the text of the specific guarantees of individual liberty established by the United States Constitution.

(b) The commissioning resolution must clearly state the scope of the commissioners' and alternate commissioners' authority, which must be limited as follows:

(1) If this state is not one (1) of the two-thirds (2/3) of the states applying for the convention, to the subject matter enumerated in the thirty-four (34) or more state applications that triggered the convention;

(2) If this state is one (1) of the two-thirds (2/3) of the states applying for the convention, to the subject matter enumerated in this state's application for the convention; and

(3) To additional instructions from the general assembly, whether in the joint commissioning resolution or by a subsequent joint resolution.

(c) The general assembly may provide additional instructions at any time by the adoption of a subsequent joint resolution, a copy of which the clerk of the house of representatives shall provide to each commissioner, alternate commissioner, and to the advisory committee.

3-18-107. Oath.

(a) Each commissioner and alternate commissioner shall, after appointment and before the commissioner or alternate commissioner may exercise any function as commissioner or alternate commissioner, execute an oath in writing that the commissioner or alternate commissioner:

(1) Will support the United States Constitution and the Constitution of Tennessee;

(2) Will faithfully abide by and execute all instructions to commissioners and alternate commissioners adopted by the general assembly and as may be amended by the general assembly from time to time;

(3) Will accept and act according to the limit of authority specified in the commissioning resolution;

(4) Acknowledges that violating this oath may subject the commissioner or alternate commissioner to penalties as provided by law, and such commissioner or alternate commissioner may be suspended, recalled, or removed by the general assembly or the advisory committee; and

(5) Will otherwise faithfully discharge the duties of commissioner or alternate commissioner.

(b) Each commissioner's or alternate commissioner's executed oath must be filed with the secretary of state.

3-18-108. Credentials.

After a commissioner's executed oath is filed with the secretary of state, the clerk of the house of representatives shall provide to the commissioner an official copy of the executed oath and the commissioning resolution, which together serves as the commissioner's credentials.

3-18-109. Vacancies - Authority of alternate commissioners.

(a) The alternate commissioner shall fill the vacancy of the paired commissioner. Any additional vacancies must be filled by the advisory committee's selection of an alternate commissioner until such time as a vote by a joint session of the general assembly selects a permanent replacement.

(b) An alternate commissioner shall:

(1) Act in the place of the paired commissioner when the paired commissioner is absent from the Article V convention; or

(2) Replace the paired commissioner if the paired commissioner vacates the office.

3-18-109. Compensation and expenses.

(a) A commissioner must receive the same compensation as a member of the house of representatives, prorated for length of time served.

(b) A commissioner is entitled to receive the same per diem and allowance for expenses and mileage as provided to a member of the house of representatives in accordance with the regulations promulgated by the commissioner of finance and administration and approved by the attorney general and reporter.

(c) All funds necessary to pay expenses under subsection (a) must be paid from appropriations to the general assembly subject to approval by joint resolution under § 3-18-104.

3-18-110. Emolument and gift prohibition.

(a) A commissioner or an alternate commissioner shall not accept, during such commissioner's time of service, any gifts or benefits with a combined value of more than two hundred dollars (\$200), other than from a member of such commissioner's immediate family and of the kind customarily granted by such immediate family member.

(b) As used in this section, "gift or benefit" must be construed liberally to include current and future loans, lodging, food, offers of prospective employment, and other actual and prospective benefits; provided, that an employer's decision to continue paying a commissioner's current salary is not a gift.

3-18-111. Quorum, conduct, and rule of decision within the delegation.

(a) The commissioners within the delegation, including any alternate commissioners filling a vacancy, shall choose from among them a chair of the delegation, a person who must cast the state's vote on the convention floor, and a person to speak to the media on behalf of the delegation. If the delegation so decides,

the same person may exercise any or all such functions. The delegation may designate a different commissioner to perform any function at any time.

(b) Each commissioner shall take care to avoid communicating the impression to a person outside of the delegation that the delegation is divided on a question on which the delegation has taken a formal position, including, but not limited to, whether to cast a vote for or against a proposal.

(c) Except for the commissioner designated to communicate with the media on behalf of the delegation, a commissioner shall not communicate with the media about convention business during the convention or during any temporary recess or temporary adjournment.

(d) A commissioner who violates subsection (b) or (c) may be suspended, recalled, or removed by the general assembly or the advisory committee.

(e) Subsections (b) and (c) must not be construed to prevent a commissioner from presenting the commissioner's opinions at the convention or debating a matter at the convention on which the commissioner's delegation has not formally taken a position.

(f) The quorum for decision by the delegation, including the designation of commissioners for particular duties or functions and the determination of how the state's vote will be cast, is a majority present and voting at the time the delegation is polled. A decision must not be made and a vote must not be cast if less than a majority of the delegation votes in the poll.

(g) The rule of decision for the delegation, a quorum being present, is that a majority of commissioners must be present and voting at the time of polling.

3-18-112. Article V convention advisory committee.

(a) The Article V convention advisory committee consists of the following members:

(1) One (1) state senator appointed by the speaker of the senate;

(2) One (1) state representative appointed by the speaker of the house of representatives; and

(3) One (1) member of the general assembly nominated by joint action of the speaker of the senate and the speaker of the house of representatives who is approved by the majority of those voting in each house of the general assembly.

(b) The advisory committee shall select one (1) of its members as chair.

(c) A commissioner may inquire from the advisory committee as to whether a proposed action by the commissioner would violate the commissioning resolution, the commissioner's oath, or any subsequent instruction of the general assembly.

(d) The advisory committee:

(1) Shall communicate to the commissioner requesting such advice a determination within twenty-four (24) hours of receiving the request;

(2) May communicate such determination by any appropriate medium; and

(3) Has the authority to hire staff and develop appropriate procedures and mechanisms for monitoring the convention, commissioners, its committees, and subcommittees.

3-18-113. Monitoring the exercise of commissioner authority.

(a) Whenever the advisory committee has reason to believe that a commissioner or alternate commissioner has exceeded such commissioner's scope of authority, the committee shall notify the speaker of the house of representatives, the speaker of the senate, and the attorney general and reporter.

(b) Upon the request for a determination by the speaker of the house of representatives, the speaker of the senate, or the attorney general and reporter on whether a commissioner or alternate commissioner has exceeded the commissioner's scope of authority, the advisory committee shall expeditiously issue a determination on whether the commissioner or alternate commissioner exceeded such scope of authority and immediately communicate its determination to the requester.

(c) Upon determining that a commissioner or alternate commissioner has exceeded the commissioner's scope of authority pursuant to subsection (a) or (b), the advisory committee shall immediately exercise its authority under § 3-18-105(f) to remove the commissioner, and shall communicate said action and the reasons therefor to the speaker of the house of representatives, the speaker of the senate, the attorney general and reporter, and the presiding officers of the convention.

3-18-114. Restrictions on Article V convention attendees to run for selected offices.

(a) By accepting a commission to attend an Article V convention, a commissioner agrees to become ineligible to seek the office of senator, representative, or governor if the primary or general election date for which they are seeking office occurs within four (4) years following the permanent adjournment of an Article V convention, regardless of whether the commissioner remained in attendance at the convention until the permanent adjournment of the convention or left the convention prior to the permanent adjournment of the convention.

(b) Following the permanent adjournment of the Article V convention, the secretary of state shall:

(1) Create a list of people ineligible to run for the offices of senator, representative, or governor based on the criteria in subsection (a). The list must specify the date on which the prohibition ends; and

(2) Immediately transmit the list compiled under subdivision (b)(1) to the state board of elections and each county election commission and retransmit the same information to the same recipients annually for three (3) subsequent years.

3-18-115. Offenses - Penalty.

(a) It is an offense for a commissioner or alternate commissioner to knowingly or intentionally vote or attempt to vote outside the scope or in violation of:

(1) The joint commissioning resolution, such commissioner's oath of office, or further instructions established by the general assembly; or

(2) The limits placed by the general assembly in a joint resolution that calls for an Article V convention for the purpose of proposing amendments to the Constitution of the United States on the subjects and amendments that may be considered by the Article V convention.

(b) A violation of subsection (a) is a Class E felony.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.